

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                                                                                  |                           |                                                       |                                    |                                 |
|--------------------------------------------------|------------------------------------------------------------------------------------------------------------------|---------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Judith Le                       | Team:<br>Squad #8                                                                                                | CCRB Case #:<br>201605921 | <input checked="" type="checkbox"/> Force             | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                                                                                                  |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 04/05/2016 3:00 PM  | Location of Incident:<br>Opposite of § 87(2)(b), police vehicle, 30th Precinct stationhouse, and Manhattan Court | Precinct:<br>30           | 18 Mo. SOL<br>10/5/2017                               | EO SOL<br>10/5/2017                |                                 |
| Date/Time CV Reported<br>Wed, 07/06/2016 6:00 PM | CV Reported At:<br>CCRB                                                                                          | How CV Reported:<br>Mail  | Date/Time Received at CCRB<br>Fri, 07/08/2016 1:13 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. Officers            |        |        |         |
| 2. POM Justin Mcknight | 22630  | 953089 | 030 PCT |
| 3. POM Steven Moran    | 02932  | 947275 | 030 PCT |

| Officer(s)             | Allegation                                                                                   | Investigator Recommendation |
|------------------------|----------------------------------------------------------------------------------------------|-----------------------------|
| A. Officers            | Abuse: Opposite of § 87(2)(b) in Manhattan, officers strip-searched § 87(2)(b)               |                             |
| B. Officers            | Abuse: While in a police vehicle, officers threatened § 87(2)(b) with the use of force.      |                             |
| C. POM Justin Mcknight | Force: Police Officer Justin Mcknight used physical force against § 87(2)(b)                 |                             |
| D. POM Steven Moran    | Force: Police Officer Steven Moran used physical force against § 87(2)(b)                    |                             |
| E. Officers            | Force: At the 30th Precinct stationhouse, officers used physical force against § 87(2)(b)    |                             |
| F. Officers            | Force: At the Manhattan Criminal Courthouse, officers used physical force against § 87(2)(b) |                             |

### Case Summary

On July 6, 2016, § 87(2)(b) mailed a letter, dated July 1, 2016, from the Otis Bantum Correctional Center at Rikers Island. The complaint was received by CCRB on July 8, 2016. On July 12, 2016, § 87(2)(b) was identified as presently incarcerated. [§ 87(2)(b)] [§§ 86(1)(2)&(4)&(5)& 87(2)(g)]

On July 12, 2016, the undersigned contacted Legal Aid of Manhattan and identified § 87(2)(b) s attorney as § 87(2)(b). Callback messages were left to an automated server on July 12, 2016 and July 14, 2016. On July 14, 2016, § 87(2)(b) called back the undersigned and stated that she would need to check in with her manager regarding CCRB policy. § 87(2)(b) also said that she had been with § 87(2)(b) during his arraignment and would also see if she could provide a witness statement. On July 20, 2016 and July 25, 2016, the undersigned attempted to contact § 87(2)(b). Callback messages were left to an automated server. On July 25, 2016 a please call letter—which has not been returned by the US Postal Service—was also mailed to § 87(2)(b) at Legal Aid. On July 29, 2016, § 87(2)(b) called the undersigned and said that she was advising § 87(2)(b) against providing a statement that could be subpoenaed as his case was going to trial soon. The undersigned explained options for withdrawal and let § 87(2)(b) know that a future request could be made by her or § 87(2)(b) to reopen the case. She stated that she would be in touch. On August 1, 2016, the undersigned called § 87(2)(b) and a message was left to an automated server. On August 5, 2016, the undersigned called § 87(2)(b) again and let her know that the case would be closed § 87(2)(g). A search of the New York City Department of Corrections inmate lookup webpage on August 8, 2016 showed that § 87(2)(b) was still presently incarcerated. § 87(2)(g)

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Squad: 8

|               |                 |       |       |
|---------------|-----------------|-------|-------|
| Investigator: | _____           | _____ | _____ |
|               | Signature       | Print | Date  |
| Squad Leader: | _____           | _____ | _____ |
|               | Title/Signature | Print | Date  |
| Reviewer:     | _____           | _____ | _____ |
|               | Title/Signature | Print | Date  |